

ORDER SHEET

Case No. CrI. Misc. No.15465/B/2015

Malik Muhammad Asim **Versus** The State & another

14.12.2015 Mr. Waris Ali Khokhar, Advocate with the petitioner.
Mr. Naeem Akhtar Basra, Advocate for the complainant.
Ch. Muhammad Akram Tahir, Deputy District Public
Prosecutor.
Farooq, ASI.

Through this petition, Malik Muhammad Asim the petitioner seeks pre-arrest bail in case FIR No.411 dated 16.10.2015, offence under Section 489-F of Pakistan Penal Code, 1860, registered with Police Station Narang Mandi, District Sheikhpura.

2. Briefly, the allegation against the petitioner as per contents of the crime report is that having business relations with the complainant, he (petitioner) purchased paddy (rice) from the complainant worth Rs.20,96,680/- and in lieu thereof issued four cheques, out of which cheque bearing No.144029 valuing Rs.4,00,000/- stood dishonoured on presentation to the concerned bank.

3. Arguments heard. Record perused.

4. Even per crime report, against one liability of payment of Rs.20,96,680/-the petitioner issued four cheques to the complainant. I have observed that the complainant out of four cheques presented two cheques bearing No.144029 amounting to

Rs.4,00,000/-(subject cheque) and cheque bearing No.144028 of Rs.3,00,000/- to the bank on 04.06.2014 and both were returned on the same day to the complainant as is evident from the copies of mentioned cheques and their return memos annexed with this file at pages No.27 & 28 that has also not been denied by the private learned counsel for the complainant. The important aspect is that the complainant got registered another case FIR No.196 dated 01.06.2015 for offence under Section 489-F of Pakistan Penal Code, 1860, at Police Station Narang only for dishonoured return of cheque No.144028 of Rs.3,00,000/- in which the petitioner was granted post arrest bail by the learned Additional Sessions Judge, Ferozwala, on 23.09.2015. It is only thereafter the complainant got registered the instant criminal case on 16.10.2015 for the other cheque dishonoured on the day when subject cheque of case FIR No.196 mentioned above was returned which, prima-facie, transpires that the complainant seems to have the plan to keep the petitioner suffering incessantly by registration of different FIRs to be resulted into his repeated arrest for just a single liability of Rs.20,96,680/- as mentioned in the crime report. This kind of practice on the part of the complainant to involve a person in criminal cases against one liability in such like manner while putting him in a swamp to finally pine away, cannot be permitted to perpetuate. Moreover, the registration of different criminal cases one after the other by a complainant against an accused for different cheques issued at one time for a single liability presented to and returned by the bank concerned simultaneously, also reflects a patent mala fide on the part of the complainant that needs to be discouraged. It has also been noticed that the complainant has not given time, date and even year of purchase of paddy by the petitioner. The narration available in the crime report is also discrepant with the stance furnished by the complainant in his application instituted under Sections 22-A & 22-B of the Criminal Procedure Code, 1898, before the learned ex-officio Justice of

Peace which transpires that the amount was borrowed by the petitioner that reflects adverse to the narration available in the instant crime report. The petitioner has joined the investigation and is no more required for the same purpose. The order dated 20.10.2015 passed by this Court in writ petition No.31989 of 2015 titled Awais Ahmad v. SHO etc. filed by the real brother of present petitioner against the complainant of this case for recording the cross version in the present criminal case has not so far been complied with by the Investigation Officer which also manifests mala fide on his part. Moreover, the registration of a criminal case under Section 489-F of Pakistan Penal Code, 1860, is not to be used as a tool for the recovery of amount in issue between the parties.

For all discussed above, this Court is of the opinion that the petitioner has made out a good case for the grant of pre-arrest bail hence, the instant petition is allowed and ad-interim pre-arrest bail already granted to Malik Muhammad Asim, the petitioner is confirmed subject to his furnishing fresh bail bonds in the sum of Rs.1,00,000/-with two sureties each in the like amount to the satisfaction of learned trial court.

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting

Judge

Nazir